

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #16	CCRB Case #: 202106780	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/29/2021 9:35 AM, Friday, 10/29/2021 1:50 PM	Location of Incident: § 87(2)(b)	Precinct: 104	18 Mo. SOL 4/29/2023	EO SOL 4/29/2023	
Date/Time CV Reported Mon, 11/08/2021 8:49 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 11/08/2021 8:49 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Shuyi Lin	03656	954068	104 PCT
2. PO Yeahya Shahid	25436	963270	104 PCT
3. SGT Timothy Geary	03486	945680	104 PCT
4. PO Greysy Archange	05303	944775	104 PCT
5. DTS Emily Carberry	03989	952339	ESS 10
6. PO Kenneth Steiger	30087	953447	ESS 10
7. PO Shiyang Shen	01084	957159	ESU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO David Babayev	22384	929425	104 PCT
2. PO Luis Pineda	30980	937291	104 PCT
3. PO Travis Nardello	08018	960995	104 PCT
4. PO Eric Kollbeck	09929	966140	104 PCT
5. PO Andrew Incantalupo	19516	962493	104 PCT
6. PO Gregory Montalbano	16254	957866	104 PCT
7. PO Hector Tejada	31795	953472	112 PCT
8. PO John Gavan	07615	968431	112 PCT
9. PO Bryan Loubriel	27521	969180	112 PCT
10. PO Jeffrey Hunold	08378	936788	112 PCT
11. PO Michael Strebel	30163	967357	112 PCT
12. PO Carl Petitfrere	22102	962687	112 PCT
13. PO Gerard Norton	07003	965816	112 PCT
14. LT Ronald Lubin	00000	938888	112 PCT
15. PO Daohui Tang	16165	955558	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A.DTS Emily Carberry	Force: At 9:35 AM, Detective Emily Carberry used physical force against § 87(2)(b)	
B.PO Kenneth Steiger	Force: At 9:35 AM, Police Officer Kenneth Steiger used physical force against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
C.PO Shiyang Shen	Force: At 9:35 AM, Police Officer Shiyang Shen used physical force against § 87(2)(b)	
D.PO Yeahya Shahid	Force: At 9:35 AM, Police Officer Yeahya Shahid tightly handcuffed § 87(2)(b)	
E.PO Shuyi Lin	Force: At 9:35 AM, Police Officer Shuyi Lin tightly handcuffed § 87(2)(b)	
F.PO Greysy Archange	Force: At 9:35 AM, Police Officer Greysy Archange tightly handcuffed § 87(2)(b)	
G.SGT Timothy Geary	Abuse: At 9:35 AM, Sergeant Timothy Geary forcibly removed § 87(2)(b) to the hospital.	
H.PO Kenneth Steiger	Abuse: At 9:35 AM, Police Officer Kenneth Steiger damaged § 87(2)(b)'s property.	
I.DTS Emily Carberry	Abuse: At 9:35 AM, Detective Emily Carberry entered § 87(2)(b) in Queens.	
J.PO Kenneth Steiger	Abuse: At 9:35 AM, Police Officer Kenneth Steiger entered § 87(2)(b) in Queens.	
K.PO Shiyang Shen	Abuse: At 9:35 AM, Police Officer Shiyang Shen entered § 87(2)(b) in Queens.	
L.DTS Emily Carberry	Abuse: At 9:35 AM, Detective Emily Carberry searched § 87(2)(b) in Queens.	
M.PO Kenneth Steiger	Abuse: At 9:35 AM, Police Officer Kenneth Steiger searched § 87(2)(b) in Queens.	
N.PO Shiyang Shen	Abuse: At 9:35 AM, Police Officer Shiyang Shen searched § 87(2)(b) in Queens.	
§ 87(4-b) § 87(2)(g)		
P.SGT Timothy Geary	Abuse: At 1:50 PM, Sergeant Timothy Geary entered § 87(2)(b) in Queens.	
Q.SGT Timothy Geary	Abuse: At 1:50 PM, Sergeant Timothy Geary searched § 87(2)(b) in Queens.	
R.SGT Timothy Geary	Abuse: Sergeant Timothy Geary failed to provide § 87(2)(b) with a business card.	

Case Summary

On November 8, 2021, § 87(2)(b) filed this complaint on the CCRB website.

On October 29, 2021, at 9:30 AM, § 87(2)(b) was involved in a physical altercation with § 87(2)(b) at § 87(2)(b) in Queens. § 87(2)(b) called 911 and at 9:35 AM, Sergeant Timothy Geary, Police Officer Yeahya Shahid, Police Officer Shuyi Lin, Police Officer Greysy Archange, Police Officer David Babayev, Police Officer Luis Pineda, all from the 104th Precinct, and additional officers arrived at the location. § 87(2)(b) refused to come out of the house and Sgt. Geary requested the Emergency Services Unit (ESU) to the location. At 9:44 AM, Detective Emily Carberry, Police Officer Kenneth Steiger, and Police Officer Shiyang Shen, all of ESU, arrived at the location. Det. Carberry, PO Steiger, and PO Shen convinced § 87(2)(b) to exit the house and handcuffed him at the front door. Det. Carberry, PO Steiger, and PO Shen allegedly pushed § 87(2)(b) while handcuffing him (**Allegations A to C – Force – § 87(2)(g)**). After § 87(2)(b) was handcuffed, PO Shahid, PO Lin, and PO Archange allegedly continuously tightened his handcuffs (**Allegations D to F – Force – § 87(2)(g)**). Sgt. Geary then forcibly removed § 87(2)(b) to § 87(2)(b) (**Allegation G – Abuse of Authority – § 87(2)(g)**).

After § 87(2)(b) was removed to the hospital, Det. Carberry, PO Steiger, and PO Shen went up to the second-floor apartment of the house. PO Steiger broke the lock of the door and the three officers entered and searched the second-floor apartment (**Allegations H to N – Abuse of Authority – § 87(2)(g)**).

§ 87(2)(g)

At 1:50 PM, Sgt. Geary, PO Lin, PO Babayev, and PO Pineda returned to § 87(2)(b) and entered and searched the second-floor apartment (**Allegations P and Q – Abuse of Authority – § 87(2)(g)**). Sgt. Geary did not offer § 87(2)(b)'s wife, § 87(2)(b) (unknown first name), a business card (**Allegation R – Abuse of Authority – § 87(2)(g)**).

This case was originally assigned to Investigative Manager Patrick Yu and was reassigned to Investigator Edward Tsigel on March 25, 2022.

The CCRB received 31 Body Worn Camera (BWC) videos of this incident (BR 07).

§ 87(2)(b) was arrested for § 87(2)(b)

as a result of this incident (BR 08).

Findings and Recommendations

Allegation (A) Force: At 9:35 AM, Detective Emily Carberry used physical force against § 87(2)(b)

Allegation (B) Force: At 9:35 AM, Police Officer Kenneth Steiger used physical force against § 87(2)(b)

Allegation (C) Force: At 9:35 AM, Police Officer Shiyang Shen used physical force against § 87(2)(b)

Allegation (D) Force: At 9:35 AM, Police Officer Yeahya Shahid tightly handcuffed § 87(2)(b)

Allegation (E) Force: At 9:35 AM, Police Officer Shuyi Lin tightly handcuffed § 87(2)(b)

Allegation (F) Force: At 9:35 AM, Police Officer Greysy Archange tightly handcuffed § 87(2)(b)

It is undisputed that on October 29, 2021, at 9:30 AM, § 87(2)(b) (BR 01) got into a physical altercation with § 87(2)(b) at § 87(2)(b). § 87(2)(b) was the owner of the house and § 87(2)(b) was the tenant in the second-floor apartment. § 87(2)(b) called 911 and reported that § 87(2)(b) punched him in the face and tried to stab him with a knife and was inside of the house (BR 02). At 9:35 AM, Sgt. Geary (BR 03), PO Shahid, PO Lin, PO Archange, PO Babayev, PO Pineda, and additional officers from the 104th and 112th Precincts arrived at the house. Sgt. Geary and the officers attempted to convince § 87(2)(b) to exit the house repeatedly, which he

§ 87(2)(b) to the hospital.

Sgt. Geary (BR 03) stated that he made the decision to remove § 87(2)(b) to the hospital because he wanted him to be psychologically evaluated. He stated that this was the second incident in which § 87(2)(b) committed a violent crime and barricaded himself in the house. § 87(2)(b) was ranting and yelling at the officers on the steps of the house and was not able to have a reasonable conversation with the officers. He believed that § 87(2)(b) was a threat to his own safety and the safety of others because he menaced the off duty officer with a knife and had a history of being violent. He believed that § 87(2)(b) behavior was unreasonable. Based on all of these factors, he believed that it was necessary to remove § 87(2)(b) to the hospital. He believed it was necessary for § 87(2)(b) to see a doctor and for them to psychologically evaluate him to see if he needed medication.

The EVENT (BR 02) shows that § 87(2)(b) called 911 and reported that § 87(2)(b) punched him and attempted to stab him with a knife. The operator immediately dispatched EMS to the location. § 87(2)(b) then told the operator that he was not injured. EMS arrived approximately four minutes after they were dispatched. There was no mention of § 87(2)(b) being an emotionally disturbed person (EDP) at any point throughout the incident.

§ 87(2)(g)

Allegation (H) Abuse of Authority: At 9:35 AM, Police Officer Kenneth Steiger damaged § 87(2)(b)'s property.

Allegation (I) Abuse of Authority: At 9:35 AM, Detective Emily Carberry entered § 87(2)(b) in Queens.

Allegation (J) Abuse of Authority: At 9:35 AM, Police Officer Kenneth Steiger entered § 87(2)(b) in Queens.

Allegation (K) Abuse of Authority: At 9:35 AM, Police Officer Shiyang Shen entered § 87(2)(b) in Queens.

Allegation (L) Abuse of Authority: At 9:35 AM, Detective Emily Carberry searched § 87(2)(b) in Queens.

Allegation (M) Abuse of Authority: At 9:35 AM, Police Officer Kenneth Steiger searched § 87(2)(b) in Queens.

Allegation (N) Abuse of Authority: At 9:35 AM, Police Officer Shiyang Shen searched § 87(2)(b) in Queens.

It is undisputed that after § 87(2)(b) (BR 01) was removed to the hospital, Det. Carberry, PO Steiger, and PO Shen entered his apartment and searched it. Det. Steiger broke the lock of the front door of the apartment in order to enter it.

Det. Carberry, PO Steiger, and PO Shen were not interviewed because the investigation was able to make a determination without their statements.

At 0:35, of PO Steiger's BWC Video 3 (BR 10), PO Steiger, Det. Carberry, and PO Shen enter the house and walk up the stairs to the second floor. At 1:05, their supervisor provides them with keys to the apartment. It is unknown where the keys were obtained from. From 1:15 to 2:10, PO Steiger attempts to open the door using the keys, however they do not work. Between 2:10 and 2:25, Det. Carberry attempts to open the door with a screwdriver which does not work. At 2:25, PO Steiger kicks the door four times and the door breaks open. Between 2:35 and 4:06, all three officers enter the apartment and search areas where people could hide. They do not check any small compartments. At 3:53, the lock of the door is seen ripped off of its hinges. Det. Carberry's video 3 (BR 11) and PO Shen's video 3 (BR 12) are consistent with PO Steiger's BWC and provide their respective angles of the entry and search inside the apartment.

In the barricaded perpetrator and perpetrator search section of the **NYPD ESU training manual** (BR 13) (Page 89), it states that in situations where a perpetrator refuses to exit a target location, to establish contact with the perpetrator and attempt to convince them to exit. In the event that the occupant of the target location decides to voluntarily surrender, afterwards, the ESU team must make entry into the location and search any areas where someone could be hiding.

Onderdonk v. State, 170 Misc. 2d 155 (1996) (BR 14) ruled that police officers can damage property only if doing so is reasonably necessary to carry out their duties.

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

Allegation (P) Abuse of Authority: At 1:50 PM, Sergeant Timothy Geary entered § 87(2)(b) in Queens.

Allegation (Q) Abuse of Authority: At 1:50 PM, Sergeant Timothy Geary searched § 87(2)(b) in Queens.

It is undisputed that on October 29, 2021, at 1:50 PM, § 87(2)(b)'s wife (BR 01), § 87(2)(b) (unknown first name) (BR 17), came home to § 87(2)(b) and saw officers in front of her house. She spoke to the landlord's wife, who notified her that officers had broken the door to her apartment to get inside. In front of her residence, she spoke to Sgt. Geary (BR 03), PO Lin, PO Babayev, and PO Pineda about what happened. PO Lin asked § 87(2)(b) for consent to enter home and search it. PO Lin told her that she had the right to refuse and if she did refuse then the search would not happen unless they obtained a search warrant. § 87(2)(b) provided consent for the officers to enter and search her apartment. § 87(2)(b) signed a consent to search form. The four officers entered her apartment, and searched all of the bedrooms and drawers for the knife with a blue handle that § 87(2)(b) used to menace § 87(2)(b). The officer searched for approximately ten minutes, did not find the knife, and left the location without further incident.

From 0:00 to 1:00, of PO Lin's BWC video 2 (BR 18), she is seen showing § 87(2)(b) a consent to search form. At 1:00, § 87(2)(b) signs the consent to search form and PO Lin notifies her that she has the right to refuse the entry and search. At 2:00, § 87(2)(b) and the officers enter the house. Sgt. Geary tells her that the city will pay for the broken door. Between 2:45 and 7:12, § 87(2)(b) and the officers enter the apartment and the officers search the entire apartment. The officers then leave the apartment. Sgt. Geary's, PO Babayev's, and PO Pineda's BWC videos (video 2/2 for each) (BR 07) are consistent with PO Lin's video and provide additional angles.

The CCRB received negative results for a consent to search form (BR 19) regarding this search. However, the BWC footage clearly shows that § 87(2)(b) signed a consent to search form.

In **People v. Gonzalez, 39 N.Y.2d 122** (BR 20), the court held that consent to search is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt, or subtle.

NYC Administrative Code 14-173 (BR 21) states officers must articulate, using plain and simple language delivered in a non-threatening manner, that the person who is the subject of a search is being asked to voluntarily, knowingly, and intelligently consent to such search, and explaining that such search will not be conducted if such person refuses to provide consent to such search. Officers must document the time, location, and date of such search, and the apparent race/ethnicity, gender, and age of the person who was the subject of such search, and such officer's

name, precinct, and shield number.

§ 87(2)(g)

Allegation (R) Abuse of Authority: Sergeant Timothy Geary failed to provide § 87(2)(b) with a business card.

Although this was not alleged by § 87(2)(b) BWC footage does not capture Sgt. Geary offering § 87(2)(b) a business card.

Sgt. Geary (BR 03) stated that he did not provide a business card to § 87(2)(b) at any point during his search of her apartment and did not know if it was required to do so.

Sgt. Geary's BWC video 2 (BR 22) is consistent with PO Lin's BWC video 2, mentioned-above. From 0:00 to 7:24, § 87(2)(b) signs the consent to search form and enters the apartment with the officers. The officers search the entire apartment and then leave the apartment. Neither Sgt. Geary nor any other officer offers § 87(2)(b) a business card at any point during this incident.

NYPD Administrative Guide 304-11 (BR 23) states that officers are required to offer a business card to any individual who is a subject of a home search, except when there is an arrest made or summons issued as a result.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- § 87(2)(b)
- Detective Emily Carberry has been a member-of-service for ten years and has been a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Kenneth Steiger has been a member-of-service for ten years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Shiyang Shen has been a member-of-service for eight years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Yeahya Shahid has been a member-of-service for five years and has been a subject in four CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Shuyi Lin has been a member-of-service for nine years and has been a subject in three CCRB complaints and five allegations, of which one was substantiated.:
 - 201905883 involved a substantiated allegation of a search of person against PO Lin. The Board recommended instructions and the NYPD imposed command level instructions.
- Police Officer Greysy Archange has been a member-of-service for fifteen years and this is the first CCRB complaint to which she has been a subject.

- Sergeant Timothy Geary has been a member-of-service for fourteen years and has been a subject in three CCRB complaints and six allegations, none of which were substantiated. [§ 87(2)(b)] [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 19, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 25).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: _____ 16 _____

Investigator:	_____ Inv. Tsigel Signature	_____ Investigator Edward Tsigel Print Title & Name	_____ 12/14/2022 Date
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Squad Leader:	_____ Patrick Yu Signature	_____ IM Patrick Yu Print Title & Name	_____ 12/14/2022 Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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